

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUSSELL OLEVSKY,

Petitioner

VS.

JONATAS DE PAULA OLIVEIRA,

Respondent

) Case Number: FDI-22-797024

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF MODIFY METHOD OF ENFORCEMENT OF ATTORNEY
FEES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Russell Olevsky and Respondent Jonatas De Paula Oliveira.
- 2) On 9/16/25, Petitioner filed a Request for Order asking the Court to issue a Writ of Execution seeking to collect \$10,814.84 in attorney's fees pursuant to the Court's 1/23/24 order (filed 1/27/24). Petitioner states the award became due thirty days after the Mandatory Settlement Conference on 5/24/24 and is payable at a rate of \$300.41 monthly. Petitioner asserts he only received three payments of \$300.41. Petitioner requests the Court issue a Writ of Execution for a total of \$11,529.66 (total \$10,814.84 attorney's fee award + \$1,616.05 in interest – \$901.23 paid) to prevent having to repeatedly come to Court to collect these fees. Attached as Exhibit 2 is a proposed Writ of Execution.
- 3) At the prior 11/25/25, the Court continued the hearing to 2/17/26 for lack of service.
- 4) On 12/8/25, Petitioner filed a Proof of Service indicating Petitioner's 9/16/25 Request for Order was served on Respondent by mail on 12/8/25.

- 1 5) Respondent did not file a Responsive Declaration.
- 2 6) At the prior 2/17/26 hearing, the Court made a finding that Respondent owes Petitioner \$4,206 in
- 3 unpaid monthly attorney's fees as of 2/17/26 plus \$362.61 in legal interest for a total of \$4,568.35
- 4 owed and therefore granted Petitioner's request for a Writ of Execution pursuant to Family Code
- 5 section 290 in the amount of \$4,568.35.
- 6 7) On 2/24/26, Respondent filed a Request for Order seeking modification of the attorney fee award
- 7 to an affordable amount or a fixed monthly payment plan or, in the alternative, a temporary stay
- 8 on the Writ of Execution. Respondent states that he is undergoing treatment for diagnosed heart
- 9 failure, which requires regular medical care and medications. Respondent asserts that the Writ of
- 10 Execution has created an undue hardship and interfered with his ability to meet his medical
- 11 expenses. Respondent alleges that Petitioner sent his employer communications accusing
- 12 Respondent of criminal conduct, which put his employment at risk. Respondent attached an
- 13 Income and Expense Declaration and receipts for prescriptions and other bills. Respondent also
- 14 attached emails that appear to be from Petitioner to Respondent's employer. The matter was set
- 15 for hearing on 5/12/26.
- 16 8) On 4/17/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
- 17 Order. Petitioner asserts that Respondent did not present documentary evidence of his medical
- 18 diagnosis and requests Respondent be sanctioned \$1,400 and declared a vexatious litigant.
- 19 Petitioner asserts that the allegations regarding emails to Respondent's employers were contained
- 20 in a Request for Domestic Violence Restraining Order that was previously dismissed with
- 21 prejudice.
- 22 9) On 4/17/26, Petitioner filed an Income and Expense Declaration.

23 **B. Findings and Order**

- 24 1) Respondent's request for modification of the attorney fee award or a fixed monthly payment plan
- 25 or, in the alternative, a temporary stay on the Writ of Execution is DENIED. The Court does not
- 26 find that Respondent sufficiently established an inability to pay based on the income and
- 27 expenses listed in his Income and Expense Declaration attached to his Request for Order – which
- 28 shows that Respondent earns \$1,407.83 per month more than his average monthly expenses – and
- 29 the lack of documentary evidence corroborating the factual basis for his request.

1 2) Petitioner's request for \$1,400 in sanctions is DENIED.

2 3) Petitioner's request for the Court to declare Respondent a vexatious litigant is DENIED without
3 prejudice. The Court finds that Respondent's actions have not risen to the level of vexatious
4 litigant under Code of Civil Procedure section 391 subsections (b)(2), (b)(3), and (b)(5) at this
5 time.

6 4) The Court will prepare the Findings and Order After Hearing.